BRENDAN NGEHSI NEWANFORBI
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
Email: bnn.cdl@gmail.com
Petitioner, in propria persona

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of CHP Dublin Area, Respondents.	Case No. 26CV191136 Hon. Jenna M. Whitman, Dept. 25 Hearing: January 8, 2027 9:00 a.m., Department 25 Reservation No. 958052306492 Action filed May 29, 2026 Trial: Not set

[ALTERNATIVE PROPOSED] ORDER DEFINING ESSENTIAL FACTUAL ISSUES

Review draft. Historical hearing particulars are preserved, not freshly confirmed. Signatures, exhibits, service and current case status require completion.

The Court finds that the present papers do not permit merits judgment without resolving the essential factual issues identified below. No inference of qualifying criminal activity, arbitrariness, certification entitlement or lack of lawful authority is made solely from the existence of a dispute.

Issues for resolution

The Court will determine, to the extent essential to disposition of Count One:

1. Whether the authenticated recording confirms the submitted walk-and-turn exchange, and whether the report's attribution of nonperformance to Petitioner was inaccurate.

2. Which contemporaneous impairment observations and earlier-driving facts are established by competent evidence, what remains after correction of any report error, and what lawful custody authority follows from the totality of facts known at the arrest.

3. Whether the resulting findings establish qualifying criminal activity and a material error in the April 20 certification determination.

4. If qualifying victimhood is established and necessary to relief, whether helpfulness and any properly asserted rebuttal or remaining statutory condition are established.

The parties shall not treat postdecision material as proof of what the certifier actually knew without foundation. Nonprivileged receipt, routing and record-completeness evidence may be addressed as relevant; this order does not compel blanket disclosure of personnel files, private deliberations or privileged communications.

Procedure and schedule

The Court directs the following factual procedure: [specify authorized procedure, evidence, witness presentation, scope and time limits].

The parties shall identify proposed exhibits, exact native-media file and clock references, witnesses, foundation issues and objections by [date]. The Court will determine admission and use of each disputed item; an accepted lodging notice alone does not establish admission of the media.

Any oral-testimony request must comply with the applicable rules and further orders. No jury trial is ordered by this form; any discretionary reference of distinctly stated essential factual questions must be expressly ordered by the Court.

The matter is set for [proceeding] on [date/time] in Department [____]. Existing deadlines are altered only as expressly stated here: [specify, or state none].

Merits judgment is deferred pending the procedure ordered. No writ, damages, immigration-status relief or reinstatement of dismissed claims is granted at this stage.

IT IS SO ORDERED.

DATED: _____

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JUDGE OF THE SUPERIOR COURT